

However, there is no evidence presented that Defendants' statements sought public discussion of anything. Instead, they were an unprotected effort to gather ammunition in their spat with Plaintiffs. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 632-633.) The fact that the article may have reached hundreds of thousands of readers also does not transform a private dispute into a matter of public interest. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 633.) Finally, any information Defendants disseminated about Plaintiffs did not extend beyond their summary of the dispute in the related lawsuit. A "single report is the classic small sample, subject to the classic small sample error," such that Defendants' characterizations of Plaintiff Nguyen as being a criminal defendant in the related lawsuit. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 634.)

In sum, Defendant has not met her initial burden of establishing her conduct, i.e., the republication of Defendant Le's articles, constitutes protected activity.

In her Reply, Defendant argues the article constitutes an issue of public interest because: (1) Plaintiffs are limited purpose public figures because they voluntarily injected themselves into a public controversy; (2) Department C23 of this Court found that the related *Le v. Nguyen* lawsuit involved a public controversy; and (3) Defendant Le's article was in response to Plaintiffs' publicly published articles, which further establishes a public controversy.

None of these arguments, or evidence, were included in the Motion, and it is improper for Defendant Ngo to raise these new arguments, and to present new evidence (such as the Declaration of Defendant Le, as well as the Declaration of Hanh Tran), for the first time in Reply. (See *Raceway Ford Cases* (2016) 2 Cal.5th 161, 178 ["We generally do not consider arguments raised for the first time in a reply brief."]; *Sweetwater Union High School Dist. v. Julian Union Elementary School Dist.* (2019) 36 Cal.App.5th 970, 987 ["Generally, arguments raised for the first time in a reply brief are forfeited."]; *Mansur v. Ford Motor Co.* (2011) 197 Cal.App.4th 1365, 1387-1388 [in general, "[w]e will not consider arguments raised for the first time in a reply brief, because it deprives [respondents] of the opportunity to respond to the argument"].)

Further, while Plaintiffs and Defendants may be involved in multiple lawsuits pertaining to refugee assistance, and while the publications by all parties relate to said refugee assistance, the gravamen of this lawsuit, and of the disputed articles, pertain to a private dispute between Plaintiffs and Defendants, namely, whether Defendants defamed Plaintiffs by referring to Plaintiff Nguyen as a criminal defendant. That the articles tangentially involve refugee assistance is insufficient to transform a private dispute into a matter of public interest.

Thus, Defendant's Anti-SLAPP Motion is denied.

Plaintiffs to give notice.

5	Castellanos v. Mercedes-Benz USA, LLC	Defendant Fletcher Jones Motor Cars, Inc. (FJMC) moves for summary judgment on the Complaint filed by Plaintiffs Enrique Rodriguez Castellanos and Zachary Ian Ruiz. Specifically, FJMC moves for summary judgment on the third cause of action for negligent repair, which is the only cause of action asserted against FJMC. For the following reasons, the motion is DENIED. Under the revised deadlines of Code Civ. Proc. § 437c effective January 1, 2025, a summary judgment motion must be served at least 81 days before the hearing date. If notice is served by express mail or “another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (Code Civ. Proc. § 473c(a)(2).) This notice period provided by Code Civ. Proc. § 437c is mandatory. (<i>Id</i>; see <i>Lackner v North</i> (2006) 135 Cal.App.4th 1188, 1207-1208.) The court does not have discretion to shorten the notice period without the parties’ consent. Code Civ. Proc. § 437c(a) gives the court power to shorten time on other summary judgment time requirements, but not on the 75-day notice of hearing. (<i>McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116.) The hearing on this motion is set for April 17, 2025. 81 days before April 17, 2025 is January 26, 2025. Two court days before January 26, 2025 is January 23, 2025. FJMC served the motion by email on January 30, 2025 – 7 days late. Thus, the motion must be denied as FJMC did not provide sufficient notice of the motion. Additionally, while the proofs of service indicate all the documents were served by email, the electronic service address of the person making the service was not provided in violation of Code Civ. Proc. § § 1013b(b). FJMC to give notice.
6	Gonzalez v. Phillips	Defendants Cardflex, Inc. d/b/a Cliq, and Andrew Phillips’ Motion for Extension of Deadline re Motion for [Re]consideration is DENIED. “In general, a party may move for reconsideration of a motion within 10 days after the motion is denied, based upon ‘new or different facts, circumstances, or law.’ [Citation.] ... The overriding purpose of Code of Civil Procedure section 1008 is to prevent duplicative motions. [Citation.]” (<i>UAS Management, Inc. v. Mater Misericordiae Hospital</i> (2008) 169 Cal.App.4th 357, 367; see <i>Myers v. Superior Court</i> (2022) 78 Cal.App.5th 1127, 1135 [motion for reconsideration properly denied because moving party failed to timely file its motion]; see <i>Advanced Building Maintenance v. State Comp. Ins. Fund</i> (1996) 49 Cal.App.4th 1388, 1392 [“The motion for reconsideration must be made within 10 days after service of written notice of entry of the order”].) In <i>Advanced Building Maintenance</i>, the amended notice of ruling on demurrer and motion to strike was served on October 12, 1994, such that the motion for reconsideration had to be filed by October 22, 1994. (<i>Advanced Building Maintenance v. State Comp. Ins. Fund</i> (1996) 49 Cal.App.4th 1388, 1392.) However, respondent did not file the motion for reconsideration until October 31, 1994, which the trial court denied